

**DISPOSITION OF CHARGES**

PD 46B-142A (Rev. 1-06)

CASE NO.
C - 031167
BOOK & PAGE NO.
Page 1 of 1
PERSONNEL ORDER NO.

SPECIFICATIONS AGAINST RANK/SURNAME		FIRST	M.I.	COMMAND
Police Officer Figueroa,		Michael		33 Precinct
SHIELD NO.	TAX REGISTRY NO.		DATE APPOINTED	
04760	946987		July 8, 2008	
RANK/NAME OF COMPLAINANT				COMMAND
Deputy Chief Prosecutor Claudia Avin				CCRB -Administrative Prosecution Unit
DATE OF CHARGES	DATE TRIAL COMMENCED		DATE TRIAL CONCLUDED	
March 28, 2024	July 15, 2025		July 15, 2025	

TRIAL COMMISSIONER

Honorable Anne E. Stone

SPECIFICATIONS	DISPOSITION	RECOMMENDED PENALTY	
		PLEA ☐	TRIAL ☒
1. Police Officer Michael Figueroa, on or about November 5, 2022, at approximately 1815 hours, while assigned to the 33 Precinct and on duty, in the vicinity of the Exxon/Mobil gas station, located at 3740 Broadway, New York County, wrongfully used force, in that he used his police vehicle to strike the dirt bike that § 87(2)(b) was on, without police necessity.	NOT GUILTY	It is recommended that Respondent be sent for training in the requirements of the Right to Know Act.	
2. Police Officer Michael Figueroa, on or about November 5, 2022, at approximately 1815 hours, while assigned to the 33 Precinct and on duty, in the vicinity of the Exxon/Mobil gas station, located at 3740 Broadway, New York County, abused his authority as a member of the New York City Police Department, in that he failed to provide two unidentified individuals with a business card, without police necessity.	GUILTY		

Reviewed by Deputy Commissioner of Trials

R. Maldonado
DEPUTY COMMISSIONER

8/26/25
DATE

Police Commissioner's Approval:

- ☒ Approved
☐ Disapproved
☐ Other Action (Describe)

Jesse Jain
POLICE COMMISSIONER

12/12/25
DATE



POLICE DEPARTMENT

August 26, 2025

-----X
In the Matter of the Charges and Specifications :

- against - :

Police Officer Michael Figueroa :

Tax Registry No. 946987 :

33 Precinct :

Case No.

C-031167

-----X
At: Police Headquarters
One Police Plaza
New York, NY 10038

Before: Honorable Anne E. Stone
Assistant Deputy Commissioner Trials

APPEARANCES:

For the Department:

Nicole Jardim, Esq.
Taylor Barry (*Law Student Practitioner*)
Civilian Complaint Review Board
100 Church Street, 10th Floor
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For the Respondent:

Craig Hayes, Esq.
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111 John Street, Suite 640
New York, NY 10038

To:

HONORABLE JESSICA S. TISCH
POLICE COMMISSIONER
ONE POLICE PLAZA
NEW YORK, NY 10038

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CHARGES AND SPECIFICATIONS

1. Police Officer Michael Figueroa, on or about November 5, 2022, at approximately 1815 hours, while assigned to the 33 Precinct and on duty, in the vicinity of the Exxon/Mobil gas station, located at 3740 Broadway, New York County, wrongfully used force, in that he used his police vehicle to strike the dirt bike that § 87(2)(b) was on, without police necessity.

P.G. 221-02, Page 2, Prohibitions 11, 12

USE OF FORCE

2. Police Officer Michael Figueroa, on or about November 5, 2022, at approximately 1815 hours, while assigned to the 33 Precinct and on duty, in the vicinity of the Exxon/Mobil gas station, located at 3740 Broadway, New York County, abused his authority as a member of the New York City Police Department, in that he failed to provide two unidentified individuals with a business card, without police necessity.

A.G. 304-11

COMPLIANCE WITH
NEW YORK CITY RIGHT
TO KNOW ACT

REPORT AND RECOMMENDATION

The above-named member of the Department appeared before me on July 15, 2025.

Respondent, through his counsel, entered a plea of Not Guilty to the subject charges. The CCRB introduced into evidence the hearsay statement that § 87(2)(b) ("Complainant") made to their investigators, as well as video footage of the incident. Respondent entered into evidence the transcript of Complainant's § 50-h hearing,¹ and testified on his own behalf. A stenographic transcript of the trial record has been prepared and is available for the Police Commissioner's review. Having evaluated all the evidence in this matter, I find Respondent Not Guilty of Specification 1. In addition, I find Respondent Guilty of Specification 2 and recommend that he attend training.

¹ Section 50-h of the NYS General Municipal Law provides that "wherever a notice of claim is filed against a city... the city... shall have the right to demand an examination of the claimant relative to the occurrence and extent of the injuries or damages for which claim is made. . ."

ANALYSIS

This case arises from the November 5, 2022 stop and arrest of Complainant for various Vehicle and Traffic Law violations related to an unregistered and uninsured dirt bike. The following is a summary of facts that are not in dispute.

On the date in question, Respondent, along with Police Officer Neil O'Donnell,² and Detective Emmanuel Valerio, conducted patrol in a marked Radio Motor Patrol (RMP) sport utility vehicle. While traveling on Broadway near 155 Street, they observed several individuals on dirt bikes revving their engines, "popping wheelies," and driving on the sidewalk in and around the Exxon/Mobil gas station at 3740 Broadway. Respondent made a U-turn upon observing that several of these motorbikes had stopped at the gas pumps. Respondent pulled into the gas station, drove towards the gas pump and turned the RMP towards the stopped dirt bikes. At the same time, Complainant, who was sitting on his dirt bike by the gas pump, moved his bike in the direction of the RMP in an apparent attempt to flee. It is undisputed that the vehicles collided as Complainant jumped off the bike. Respondent then got out of the RMP, arrested Complainant, and seized the dirt bike, which another officer drove back to the precinct. At the same time, Police Officer O'Donnell and Detective Valerio were interacting with the driver and female passenger of another motorcycle present at the gas tanks. Upon determining that the bike was legally registered in Pennsylvania, Officer O'Donnell let the couple leave without making an arrest or issuing a summons. Respondent also interacted with this couple, but did not offer them a Right to Know Act business card. (Tr. 22-30, 42-43, 53-54; CCRB Ex. 1, *surveillance footage*; CCRB Ex. 4, *still photo of dirt bike*; CCRB Ex. 5A, *Complainant's CCRB interview*, at 10-11, 21-22, Resp. Ex. A, *Complainant's § 50-h hearing transcript*, at 10-15)

² Police Officer O'Donnell was promoted to Sergeant on June 30, 2023.

In dispute is whether Respondent's attempt to block the bikers in this manner constituted a wrongful use of force. Also in dispute is whether Respondent wrongfully failed to give his business card to the other riders he interacted with.

Specification 1: Wrongful Use of Force

Complainant has a pending civil lawsuit in connection with this matter and did not appear to testify at trial. Instead, the CCRB introduced into evidence the recording and accompanying transcript of his March 6, 2023 telephone interview with their investigators. (CCRB Ex. 5, 5A) During his case, Respondent introduced the transcript of Complainant's June 12, 2023 § 50-h hearing regarding his civil lawsuit. (Resp. Ex. A) It is well-settled that hearsay evidence is admissible in administrative proceedings and may form the sole basis for a finding of fact. However, the hearsay must be evaluated carefully to determine whether it is sufficiently reliable. In the absence of live testimony from Complainant, I carefully considered his prior statements in conjunction with the other evidence presented at trial.

During his interview with CCRB,³ Complainant explained that he had arranged to sell his dirt bike because he did not have time to ride it and "only rode it in the woods." Complainant recalled that on the date of the incident, he took the vehicle "for a spin to make sure everything was working fine, wash it, and put gas in it so...they could take it in perfect condition." He contended that the dirt bike was "legal" to be driven on public roads. Complainant recounted that at the gas station, he spoke with other people on motorcycles as he put gas into his bike. After filling the tank, he sat on his bike and heard yelling. Complainant explained that he pushed the bike forward, without turning it on, to see what was going on. He then saw a police car coming

³ Complainant was interviewed in Spanish utilizing the services of an interpreter.

toward him. Complainant continued, “the police car hit me, I fell to the ground, they got out of the police car aggressively and arrested me immediately.” (CCRB Ex. 5A at 10-12, 20-22)

Complainant stated that the RMP’s siren was not activated when it pulled into the gas station. When asked about whether the emergency lights were on, he replied that, “I didn’t have time to see because they came in way too fast.” (*Id.* at 22) Complainant clarified that he did not fall all the way to the ground. He recounted that, “they hit it on the left of the front wheel, so the bike fell to the right... and they ran over the bike,” and bent the tire rim. Complainant admitted that at the time of the collision, he did not feel any pain; however, he alleged that he later suffered lower back pain and was planning to see a doctor. (*Id.* at 22-26)

Complainant’s version of events, as provided in his June 12, 2023 § 50-h hearing, differed somewhat from that presented in his CCRB interview. First, he acknowledged that the dirt bike was neither registered nor insured and that he did not have a New York State motorcycle license. (Resp. Ex. A at 10) Second, when asked whether his vehicle was moving when the collision occurred, Complainant testified that the dirt bike was “stopped” and that he had not filled the gas tank. (*Id.* at 14, 16)

In addition to Complainant’s statements, the CCRB presented video surveillance footage that captured the incident. The following is a summary of CCRB’s Exhibit 1:

- | | |
|-----------|---|
| 0:00-0:05 | Several individuals, including Complainant, congregate near a gas pump before quickly mounting their respective motor bikes. |
| 0:06-0:08 | Respondent’s RMP enters the frame, turning right as it angles to cut off the motor bikes. At the same time, Complainant’s motor bike moves a few feet forward in the direction of the RMP, before veering to the right. |
| 0:09-0:14 | The RMP and Complainant’s motor bike collide. Complainant dismounts his motor bike as it tips over and the passenger door of the RMP opens. Complainant stumbles briefly before coming to a |

halt standing a few feet away as officers exit the RMP and run toward him.

0:15-0:26 Officers apprehend Complainant and place him in handcuffs.

Respondent took the stand and testified that illegal dirt bikes are a serious safety condition in his precinct, and he has dealt with them before. He recalled driving past the gas station and seeing multiple people on dirt bikes, "revving their engines, doing wheelies, going up and down on the sidewalk. . .going with and against traffic." He asserted that their actions would have been unlawful, even if the vehicles were legal. Respondent explained that he did not immediately stop the drivers because, in his experience, taking such action, "tends to lead to dangerous situations. . . ." (Tr. 23) In addition, he recounted that the Department has discouraged vehicle pursuits involving dirt bikes because of safety concerns. Respondent planned to address the situation in, "the way we're taught: We put it over the radio, we get other units, we notify aviation, different units to assist." (Tr. 24-26)

When Respondent saw Complainant and several other people with motor bikes near the gas pumps, he noticed that the bikes "appeared to be off because they were gassing up." He recalled making a second U-turn in order to approach those particular vehicles, "because I thought that would be the safest way to stop someone on an illegal dirt bike. . . ." Respondent stated that he drove the RMP into the gas station towards the pump and explained that he angled it in front of Complainant to cut him off. Respondent admitted that he turned the RMP towards Complainant's dirt bike "to get as close as possible to stop [him] if he attempted to flee. . . ." (Tr. 25-26, 41-42) Respondent acknowledged that he drove in front of Complainant's dirt bike and that the vehicles made contact, but he denied intentionally hitting the bike. He recalled that when he exited the RMP after they collided, Complainant "was just standing to the side and the bike was just on the floor." He testified that Complainant did not appear to be injured and did not

make any complaint about being hurt. In addition, Respondent recalled observing damage to the “lower right-hand side of the [passenger] door” of the RMP that prevented it from closing properly. He also saw the dirt bike after the collision and testified that it “did not look damaged at all.” Respondent stated that he saw the bike being driven back to the precinct by another police officer. (Tr. 27-30, 33, 44-45)

Respondent is charged with wrongfully using force by striking Complainant’s dirt bike with his police vehicle. Although it is undisputed that the two vehicles made contact, CCRB argues that Respondent engaged in misconduct by improperly driving into Complainant’s dirt bike.⁴ Respondent maintains that he was trying to block Complainant’s path and the dirt bike struck the RMP. At issue is whether CCRB has proven by a preponderance of the credible evidence that Respondent’s actions amounted to a wrongful use of force. I find that they have not.

Patrol Guide Section 221-01 sets forth that officers may use force “when it is reasonable to ensure the safety of a member of the service or a third person or otherwise protect life... or when it is reasonable to place a person in custody or to prevent escape from custody.” Additionally, when determining whether the use of force was reasonable, Patrol Guide 221-01 lists several factors to consider which include: the nature and severity of the crime; the duration of the action; whether the person is actively resisting custody; the presence of a hostile crowd or agitators; the size, age and condition of the subject, as well as the total number of officers present.

⁴ It should be noted that Patrol Guide 221-15, which was in effect on the date of this incident, prohibited, amongst other things, ramming into another vehicle or placing a moving Department vehicle in a position to be struck by the pursued vehicle. However, that procedure is inapplicable in this situation because it deals strictly with vehicle pursuits.

Complainant did not appear before the tribunal and was not subject to questioning regarding the incident. Nonetheless, the two hearsay statements entered into evidence reveal Complainant to be an unreliable narrator, and I am not persuaded as to the credibility of his account. For example, in his CCRB interview, Complainant asserted that the dirt bike could be legally operated on public highways while simultaneously insisting that he only rode it in the woods. Equally unconvincing was his statement during the 50-h hearing that he first learned that unregistered dirt bikes were not permitted to be driven on city streets during his arrest. Complainant also provided inconsistent statements regarding the moment of impact. Complainant told the CCRB investigator that upon seeing the RMP, he pushed the dirt bike forward "to see what was going on." However, when asked during the § 50-h hearing whether he was moving when the collision occurred, he replied that the bike was stopped. Complainant's varying accounts seem designed to minimize his culpability and paint him as an innocent bystander.

In contrast, Respondent took the stand and recounted what transpired in a straightforward and detailed manner. I credit his recitation of events, which is corroborated by the surveillance video and body-worn camera footage of the incident. Respondent testified knowledgeably about the high priority placed by the Department on addressing unlicensed motor bikes. Respondent was aware of the dangers involved in pursuing these vehicles and explained NYPD policy regarding how to approach these violations. He chose to address the condition in the safest way possible, by approaching bikes which were parked by the gas pumps rather than pursuing the drivers who were riding on the sidewalk. Respondent readily admitted that he intended to "block" the path of Complainant and the other drivers by the pump by driving close to them and angling the RMP to limit their ability to maneuver around it. He acknowledged that while doing

so, the vehicles made contact with one another. Although the collision caused the RMP's door to become misaligned, there is no credible evidence in the record that Complainant was injured by the impact and the dirt bike was sufficiently operable to be safely driven to the precinct.

The CCRB has the burden of proving, by a preponderance of the credible evidence, that Respondent wrongfully used force by hitting Complainant's dirt bike with the RMP he was operating. To sanction civil service employees for misconduct, there must be some showing of fault on the employee's part. Mere errors of judgment, lacking in willful intent, and not so unreasonable as to be considered negligence, are not a basis for finding misconduct. As to negligent conduct, the degree of carelessness must be more than *de minimis*, since minor errors do not rise to the level of misconduct.

Although unfortunate, the collision at issue here appears to be the result of an accident that does not rise to the level of misconduct. Respondent was faced with a serious public safety concern which needed to be addressed. He identified the safest route to do so, approaching the dirt bikes while they were stopped at a gas station as opposed to risking a dangerous vehicle pursuit. As confirmed by the video, prior to Respondent's approach, Complainant was sitting on his dirt bike which he had parked directly in front of the gas pump. Suddenly, Complainant and the other bikers turn their heads in what seems to be the direction of the RMP. As the RMP comes into view, the four riders in the frame, including Complainant, start to pull out. Complainant appears to be using his feet, rather than the engine, as he struggles to maneuver his bike. He moves his bike away from the pump and veers in the direction of the approaching RMP. It is then that the two collide. Inasmuch as Complainant chose to move his bike toward the approaching RMP, the tribunal cannot find that the collision, which unfolded very quickly,

constituted a wrongful use of force, particularly given Respondent's credible testimony that his intent was to merely block the bikes.

Accordingly, I find that there is insufficient proof to establish that the collision rose to the level of sanctionable misconduct and that Respondent wrongfully used force. Thus, I find Respondent Not Guilty of Specification 1.

Specification 2: Failure to Provide Business Card

Respondent stands charged with failing to provide a business card to the unidentified male motorcycle driver and his female companion.

During cross-examination, Respondent acknowledged that he was involved in stopping two other riders and asking them questions. (Tr. 53-54) He did not deny, nor did he offer an explanation for his failure to provide a business card after this interaction. The question for the tribunal is whether, under the circumstances, Respondent was required to offer his business card to these individuals. I find that he was.

Administrative Guide procedure 304-11 ("Compliance With New York City Right to Know Act") states in relevant part, "For the purpose of this procedure, a business card is to be *offered* for a law enforcement activity, except in cases when a summons is issued or an arrest is made, as follows:

- a. Noncustodial questioning of individuals suspected of criminal activity (**Level 2 Encounter**)
- b. Stop where an officer has an individualized, reasonable suspicion that the person stopped has committed, is committing, or is about to commit a crime and where a reasonable person would not feel free to end the encounter (**Level 3 Encounter**)" (emphasis added)

Here, the plain reading of this procedure places an affirmative duty upon the uniformed member of service to offer a business card to members of the public under the appropriate

circumstances. The purpose behind this requirement is to increase transparency and accountability with the public.

Respondent acknowledged that he was involved with stopping and questioning the unidentified motorcycle driver and the female passenger. It is undisputed that they were neither arrested nor issued a summons. Respondent did not offer an explanation as to why he failed to offer a business card, which violates the clear language of the Administrative Guide.

Accordingly, I find Respondent Guilty of Specification 2.

PENALTY

In order to determine an appropriate penalty, this tribunal, guided by the Department's Disciplinary System Penalty Guidelines ("Matrix"), considered all relevant facts and circumstances, including potential aggravating and mitigating factors established in the record. Respondent's employment history also was examined. *See* 38 RCNY § 15-07. Information from his personnel record that was considered in making this penalty recommendation is contained in an attached memorandum.

Respondent was appointed to the Department on July 8, 2008, and has no formal disciplinary history. He has been found guilty of failing to offer two unidentified individuals a business card when required. The Matrix provides for a presumptive penalty of three (3) vacation days and a mitigated penalty of training for the failure to offer a business card. (Matrix, p. 28)

In determining an appropriate penalty, all of the surrounding circumstances must be taken into consideration. Respondent was focused on the arrest of Complainant and was not the lead officer interacting with these two individuals; the tribunal found, though, that he was courteous and professional when he did interact with them. In addition, I note that other dirt bikes remained in the vicinity, revving their engines in a manner that was distracting. (*See* CCRB Ex. 2,

Respondent's body-worn camera) I do not find that Respondent acted in bad faith; I believe the failure to offer the business card was simply an oversight.

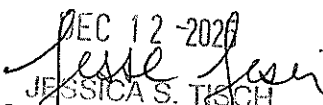
Respondent has worked for the Department for seventeen years and has not been the subject of any formal discipline. He has received "Exceptional" on his last five formal performance evaluations and has been awarded four medals for Meritorious Police Duty and four medals for Excellent Police Duty. These accomplishments, along with the circumstances of the encounter as outlined above, argue in favor of the imposition of the mitigated penalty. Accordingly, I recommend that Respondent be sent for training in the requirements of the Right to Know Act.

Respectfully submitted,



Anne E. Stone
Assistant Deputy Commissioner Trials

APPROVED

DEC 12 2020

JESSICA S. TISCH
POLICE COMMISSIONER



ERIC L. ADAMS
MAYOR

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Dr. MOHAMMAD KHALID
INTERIM CHAIR

August 25, 2025

The Honorable Jessica S. Tisch
Police Commissioner
New York City Police Department
One Police Plaza
New York, New York 10038

Re: Police Officer Michael Figueroa
DADS #: 2024-30279

Dear Commissioner Tisch:

The above-referenced case was tried on July 15, 2025, by Administrative Prosecutor Nicole Jardim for the New York City Civilian Complaint Review Board (hereinafter "CCRB"), pursuant to the Memorandum of Understanding between the CCRB and the New York City Police Department.

CCRB has reviewed the draft decision of Assistant Deputy Commissioner of Trials ("ADCT"), Anne E. Stone, dated August 14, 2025. I respectfully submit the following comments regarding that draft decision pursuant to *Fogel v. Board of Education*, 48 A.D.2d 925 (2d Dept. 1975).

Respondent, Police Officer Michael Figueroa, was charged with the following:

1. Police Officer Michael Figueroa, on or about November 5, 2022, at approximately 1815, while assigned to 033 PCT and on duty, in the vicinity of Exxon/ Mobil gas station, located at 3740 Broadway, New York County, wrongfully used force, in that he used his police vehicle to strike the dirt bike that § 87(2)(b) was on, without police necessity.

PG 221-02, PAGE 2, Prohibition 11 USE OF FORCE; 221-02, PAGE 2, Prohibition 12

2. Police Officer Michael Figueroa, on or about November 5, 2022, at approximately 1815, while assigned to 033 PCT and on duty, in the vicinity of Exxon/ Mobil gas station, located at 3740 Broadway, New York County, abused his authority as a member of the New York City Police Department, in that he failed to provide two unidentified individuals with a business card, without police necessity.

AG 304-11: COMPLIANCE WITH NEW YORK CITY RIGHT TO KNOW ACT

The Court found Respondent Figueroa Not Guilty of Specification One (1) and Guilty of Specification Two (2). It is respectfully requested that you reject ADCT Stone's finding as to Specification One (1) and accept ADCT Stone's finding as to Specification Two (2). Further, CCRB requests that you accept CCRB's recommended penalties as directed by the NYPD Disciplinary Matrix for each Specification. For Specification One (1), the presumptive penalty of a forfeiture of ten (10) vacation days and the presumptive penalty of a forfeiture of three (3) vacation days for Specification Two (2).

STATEMENTS OF FACTS

On November 5, 2023, at approximately 6:15 p.m., at a gas station located at 3740 Broadway in Manhattan, Police Officer (PO) Michael Figueroa, of the 33rd Precinct, struck § 87(2)(b) dirt bike with his patrol vehicle. Police Officer O'Donnell and Detective Valerio were also inside the police vehicle at the time. PO Figueroa was on routine patrol driving his police vehicle Northbound on Broadway, when he observed dirt bikers driving into the gas station on 155th Street and Broadway. Some were circling and revving their engines, and others were stationary. PO Figueroa decided to pull into the gas station to approach two bikers who were stopped at the gas pumps. § 87(2)(b) was one of these bikers. PO Figueroa drove into the gas station at approximately 20 miles per hour and did not activate his lights or sirens. As PO Figueroa drove into the gas station, § 87(2)(b) who was by the pump, turned his bike to the right to try and exit. PO Figueroa turned his wheel to the right towards § 87(2)(b) to cut him off. In doing this, PO Figueroa struck § 87(2)(b) dirt bike. § 87(2)(b) hopped off his bike and stood to the side with his hands up in the air. PO Figueroa and PO O'Donnell also stopped two nearby individuals who were on the other stationary dirt bike. PO Figueroa did not provide the stopped individuals with his business card. At the conclusion of this interaction, § 87(2)(b) was arrested for reckless endangerment. The Criminal Court of the City of New York Sworn Affidavit regarding this case signed by PO Figueroa on November 16, 2022, states the following: "I observed the defendant operating a motorized dirt bike [in front of 3740 Broadway, in the County and State of New York]. I observed the defendant repeatedly rev up the engine. I then observed the defendant drive at a high rate of speed and hit the passenger side of my marked police car, causing damage to the passenger door." The Criminal Court case against § 87(2)(b) was dismissed by the Manhattan District Attorney's in January of 2023.

RESPONDENT FIGUEROA IS GUILTY OF WRONGFULLY USING FORCE WHEN HE STRUCK § 87(2)(b) DIRT BIKE WITH HIS POLICE VEHICLE

CCRB disagrees with the Court's finding that PO Figueroa was not guilty of Specification One (1) and the Court's conclusion that "there is insufficient proof to establish that the collision rose to the level of sanctionable misconduct". (Draft Decision 10). The objective credible evidence submitted as well as Respondent's own testimony clearly shows that PO Figueroa wrongfully used force when he struck § 87(2)(b) dirt bike with his vehicle.

CCRB Exhibit 1, the gas station surveillance footage presented at trial, captures the collision. At the 00:07 mark, § 87(2)(b) is straddling his bike, with his left foot on the ground and his right foot pushing off the ground. He is slowly inching forward. As the front wheel of § 87(2)(b) dirt bike turns to the right towards the gas pumps, a marked police vehicle approaches on his left side. The police vehicle turns towards § 87(2)(b) dirt bike, blocking § 87(2)(b) path, and continues moving until the front wheel of the police vehicle, on the passenger side, drives on top and over the front wheel of § 87(2)(b) dirt bike. CCRB Exhibit 1 clearly shows that it was PO Figueroa who intentionally initiated the contact with § 87(2)(b) dirt bike. On direct examination, PO Figueroa confirmed this by stating that he drove towards § 87(2)(b) because he wanted to create a block to stop him from leaving. (Tr. 26-27). He testified that he wanted to stop him because he knew that the dirt bike was not registered and was not “street legal”. (Tr. 38-39). On cross-examination, PO Figueroa confirmed that he was not called to the area for any other reason and that § 87(2)(b) was not known to him. (Tr. 35-36)

CCRB Exhibit 2, presented at trial further highlights PO Figueroa’s intent to use his vehicle to strike § 87(2)(b) dirt bike. CCRB Exhibit 2, PO Figueroa’s BWC footage, captures PO Figueroa making a hard right turn, in § 87(2)(b) direction, before striking the dirt bike. Starting at the 00:41 mark of the video’s timestamp, PO Figueroa can be seen turning his wheel quickly to make a sharp right turn towards § 87(2)(b) eventually striking the bike and continuing to move forward after the collision. On cross-examination, PO Figueroa was questioned about his positioning in relation to § 87(2)(b). He testified that § 87(2)(b) was to the right of his vehicle on his dirt bike and that § 87(2)(b) was driving his dirt bike away from his vehicle towards the gas pumps. (Tr. 46-47) When shown his BWC footage in court, PO Figueroa agreed that the video depicted him making a hard right turn in § 87(2)(b) direction and stated that he did so because he wanted to stop him. (Tr. 42- 43). PO Figueroa’s testimony underscored what his intention was that day. His intention was to stop § 87(2)(b) from getting away and the surveillance footage shows that he successfully did this by wrongfully using his vehicle to strike the dirt bike.

Although the defense consistently stated during trial that § 87(2)(b) ran his dirt bike into the police vehicle, CCRB Exhibit 1 clearly captures § 87(2)(b) slowly walking with his dirt bike with the front wheel pointed away from the police vehicle. The evidence instead shows that it was PO Figueroa who intentionally drove towards § 87(2)(b) and hit the dirt bike with the front of the police vehicle. As discussed in more detail above, the evidence shows that PO Figueroa saw § 87(2)(b) and drove into the gas station at 20 miles per hour with the intent of stopping § 87(2)(b). The evidence shows that PO Figueroa made a hard right turn in § 87(2)(b) direction and stopped § 87(2)(b) by striking him with his vehicle. Lastly, the evidence shows that § 87(2)(b) did not pose a risk to the safety of PO Figueroa or the other officers. Given that the reason for the approach was for a Vehicle and Traffic Law violation of having an unregistered dirt bike, PO Figueroa’s actions were not only prohibited by the Patrol Guide but also outsized given the circumstances and created unnecessary potential for injuries for all parties involved.

Lastly, the Court credited PO Figueroa’s recitation of events at trial, however, PO Figueroa’s credibility should be more closely examined. At trial, PO Figueroa testified that he observed § 87(2)(b) parked at the gas station with his bike turned off. (Tr. 37-38). He also testified that § 87(2)(b) was driving at “less than five miles per hour, not very fast” when the collision occurred. (Tr. 48). While the Court noted in its draft decision that § 87(2)(b) narrative of the events that day contained inconsistencies and deemed him an “unreliable narrator”, the Court’s draft

decision fails to address the inaccurate statement that PO Figueroa previously gave to the Manhattan District Attorney's Office under oath. (Draft Decision 8). On cross examination, PO Figueroa was questioned about his involvement in the Manhattan District Attorney's criminal investigation stemming from this incident. PO Figueroa testified that he spoke to the Assistant District Attorney handling the case and provided a truthful sworn statement, eleven days after this incident. (Tr. 51). He testified that he had the opportunity to review his statement and that after reviewing the statement for accuracy, he signed the sworn statement. (Tr. 51-53). The Criminal Court Complaint regarding this case signed by PO Figueroa on November 16, 2022, states the following: "I observed the defendant operating a motorized dirt bike. I observed the defendant repeatedly rev up the engine. I then observed the defendant drive at a high rate of speed and hit the passenger side of my marked police car, causing damage to the passenger door." On cross examination, PO Figueroa was confronted with these statements and confirmed what he had told the District Attorney's Office. The statement PO Figueroa gave the District Attorney's office differed greatly from what he testified at Trial regarding § 87(2)(b) actions prior to the collision as well as his rate of speed prior to impact. Driving at "less than five miles per hour, not very fast" is the exact opposite from driving at a "high rate of speed". PO Figueroa's testimony at trial conveniently changed to better fit what the evidence depicted, and his trial narrative should be analyzed more critically. The Manhattan District Attorney's Office realized this and dismissed the Criminal Court complaint against § 87(2)(b) just two months after the complaint was signed by PO Figueroa. (Resp. Ex. A).

The objective, credible evidence in this case clearly shows that PO Figueroa wrongfully used force when he struck § 87(2)(b) dirt bike. PO Figueroa should be found guilty of Specification One (1) and CCRB's recommended penalty of a forfeiture of ten (10) vacation days, should be imposed.

RESPONDENT FIGUEROA IS GUILTY OF FAILING TO PROVIDE HIS BUSINESS CARD TO TWO UNIDENTIFIED INDIVIDUALS

PO Figueroa was found guilty of failing to provide his business card to two unidentified individuals. The CCRB agrees with this recommendation and the Court's conclusion that "respondent was required to offer his business card to these individuals" (Draft Decision 10).

It is undisputed that PO Figueroa failed to give his business card to the two individuals. On cross examination, PO Figueroa took responsibility for stopping the two individuals. He also acknowledged that he was involved in the investigation and asked them questions. (Tr. 53-54). PO Figueroa did not offer an explanation as to why he failed to offer the individuals a business card. In addition, neither of the individuals was arrested or issued a summons. As such, PO Figueroa was required to provide both individuals with a business card.

Based on PO Figueroa's own testimony at trial, ADCT Stone's finding is appropriate. The CCRB respectfully requests that you adopt ADCT Stone's finding and impose the presumptive penalty of a forfeiture of three (3) vacation days as directed under the NYPD Disciplinary System Penalty Guidelines.

CONCLUSION

The Court found Respondent Figueroa Not Guilty of Specification One (1) and Guilty of Specification Two (2). It is respectfully requested that you reject ADCT Stone's finding on Specification One (1) and accept ADCT Stone's finding on Specification Two (2). Further, CCRB requests that you accept CCRB's recommended penalties as directed by the NYPD Disciplinary System Penalty Guidelines for each Specification. For Specification One (1), the presumptive penalty of a forfeiture of ten (10) vacation days and the presumptive penalty of a forfeiture of three (3) vacation days for Specification Two (2).

Respectfully submitted,

A handwritten signature in cursive script that reads "Nicole Jardim". The signature is written in black ink and is positioned above a horizontal line.

Nicole Jardim
Prosecutor
Administrative Prosecution Unit
Civilian Complaint Review Board

Cc: Craig Hayes, Esq.